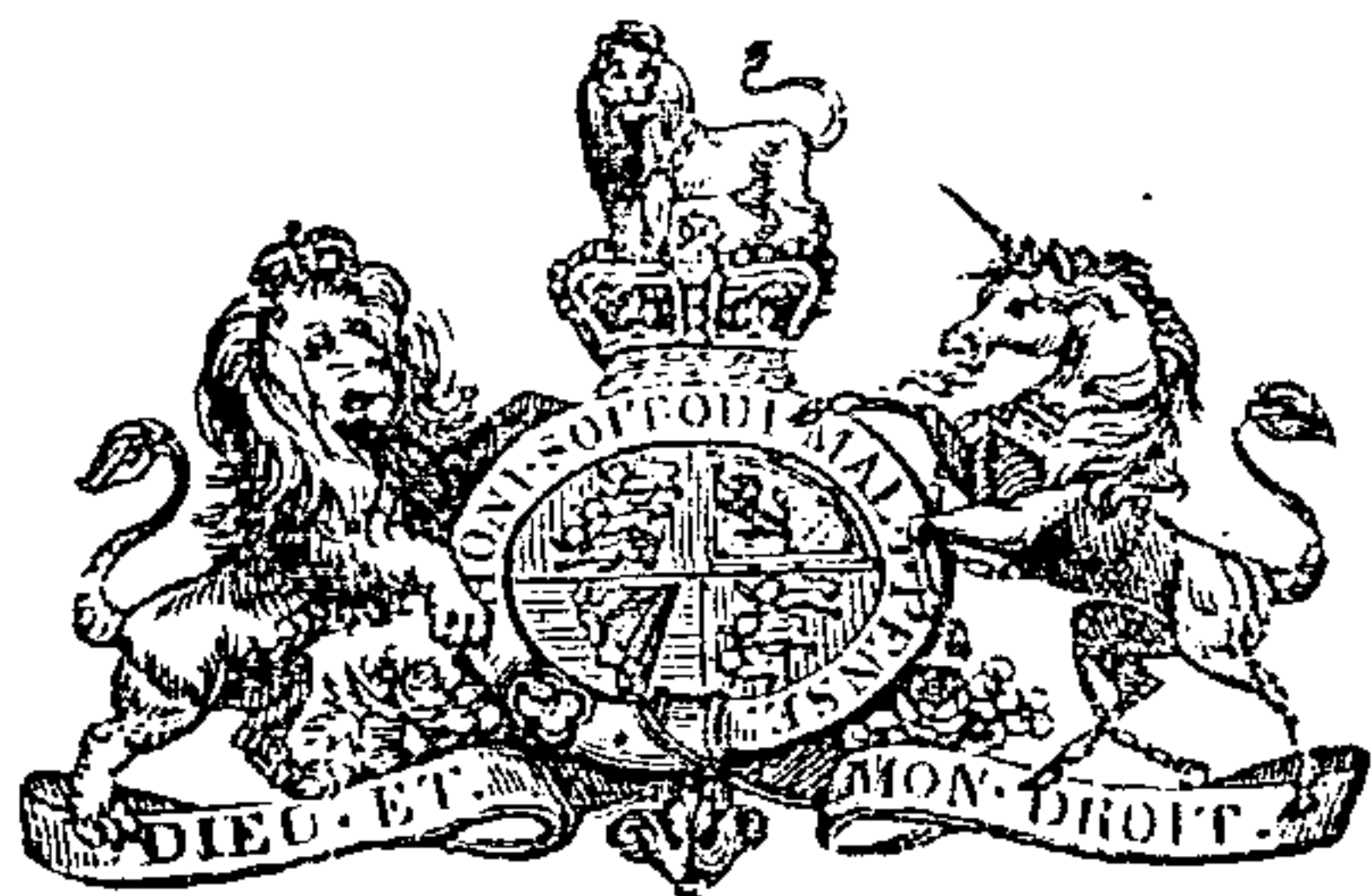




CHAPTER cxlix.

An Act to confer further powers upon the Corporation of Burnley and neighbouring authorities with respect to Tramways and Street Improvements within and beyond the borough and for other purposes. [30th July 1900.] A.D. 1900.

WHEREAS the county borough of Burnley (in this Act called "the borough") is a municipal borough under and subject to the Municipal Corporations Act 1882 and is also a county borough under the Local Government Act 1888 and the mayor aldermen and burgesses of the borough (in this Act called "the Corporation") acting by the council are the sanitary authority for the district of the borough under the Public Health Act 1875 and are also the local authority for the same district within the meaning of the Tramways Act 1870:

And whereas the borough of Nelson is a municipal borough under and subject to the Municipal Corporations Act 1882 and the mayor aldermen and burgesses of that borough (in this Act called "the Nelson Corporation") acting by the council are the sanitary authority for the district of the said borough of Nelson under the Public Health Act 1875 and are also the local authority for the said district within the meaning of the Tramways Act 1870:

And whereas the urban district councils for the districts of Padiham and Brierfield respectively (herein-after respectively called "the Padiham Council" and "the Brierfield Council") are the sanitary authorities for those districts respectively and are the local authorities for those districts respectively within the meaning of the Tramways Act 1870:

And whereas the Reedley Hallows parish council (herein-after called "the Reedley Hallows Council") is the local authority for the township of Reedley Hallows within the meaning of the Tramways Act 1870:

A.D. 1900.

And whereas the Burnley and District Tramways Company Limited (herein-after called "the company") are the owners or reputed owners of and are now working tramways within the district of the borough and the districts of Nelson Padiham Brierfield and Reedley Hallows all in the county of Lancaster :

42 & 43 Vict.
c. cxci.

And whereas the said tramways were authorised by the Burnley and District Tramways Order 1879 confirmed by the Tramways Orders Confirmation Act 1879 (herein-after referred to as "the Order of 1879") and the greater part thereof are situate within the district of the borough :

45 & 46 Vict.
c. cxxxviii.

And whereas by the Burnley and District Tramways Extension Order 1882 confirmed by the Tramways Orders Confirmation (No. 1) Act 1882 (herein-after referred to as "the Order of 1882") the carriages used on so much of the tramways authorised by the Order of 1879 as are mentioned and referred to in section 19 of the Order of 1882 were authorised to be moved by steam or any mechanical power :

50 & 51 Vict.
c. cxv.

And whereas by the Burnley and District Tramways and Extensions Order 1887 confirmed by the Tramways Orders Confirmation (No. 1) Act 1887 (herein-after referred to as "the Order of 1887") the carriages used on the remainder of the tramways authorised by the Order of 1879 were authorised to be moved by steam or mechanical power :

And whereas the period of twenty-one years at the expiration of which the several local authorities for the respective districts in which the said tramways are situate will become entitled under section 43 of the Tramways Act 1870 to purchase the portions of the tramways within their respective districts will expire on the eleventh day of August one thousand nine hundred :

61 & 62 Vict.
c. cxvii.

And whereas by the Burnley Corporation (Tramways &c.) Act 1898 (herein-after referred to as "the Act of 1898") the Corporation were authorised when and so soon as they should have acquired by purchase or by lease or agreement the tramway undertaking as defined by the Act of 1898 to place and run carriages on and work and take and demand tolls and charges in respect of the tramways as defined by the said Act and over any other tramways which might thereafter be constructed by the Corporation or over which they might have or obtain any right or privilege as in the Act of 1898 set forth :

And whereas the tramway undertaking and the tramways as defined by the Act of 1898 include the undertaking and the tramways of the company within the borough and such portions thereof without the borough as the Corporation may acquire or obtain the right to work or lease under that Act :

And whereas the Corporation were empowered by the Act of 1898 subject to the provisions of that Act with respect to lines belonging to or situate within the respective districts of the Nelson Corporation and the Padiham Brierfield and Reedley Hallows Councils (herein-after referred to as "the local authorities") to repair alter and reconstruct the said tramways and to construct and maintain such works as might be necessary for the purpose of adapting the said tramways to the use of mechanical power: A.D. 1900.

And whereas it is provided by the Act of 1898 that if and when the Corporation commence to work the tramway undertaking within the borough they shall continue to work the existing tramway between Padiham and Nelson and that the Corporation and the local authorities respectively shall exercise their powers of purchasing the portions of the said tramways within their respective boroughs and districts and it is expedient that such provisions as to continuous working should be extended to the tramways by this Act authorised:

And whereas it is expedient to confer upon the Corporation and the local authorities or some or one of them the further powers in this Act contained for working and reconstructing the tramways or some of them within their respective districts and to confer upon the Corporation the powers in this Act contained for constructing and working additional tramways within the borough:

And whereas the Nelson Corporation under the provisions of the Nelson Light Railways Order 1899 are authorised to construct light railways in connexion with the said tramways And whereas the Colne and Trawden Light Railways Company (herein-after called "the Colne and Trawden Company") by the Colne and Trawden Light Railways Order 1899 were incorporated and authorised to construct light railways also in connexion with the said tramways And whereas by the Barrowford Light Railway Order 1899 the Urban District Council of Barrowford (herein-after called "the Barrowford Council") were authorised to construct light railways also in connexion with the said tramways And whereas it might be to the public advantage that the said light railways or some of them should be worked in connexion with the said tramways or with the tramways by this Act authorised:

And whereas it is expedient that the Corporation should be empowered to make and maintain the street improvements by this Act authorised:

And whereas estimates have been prepared by the Corporation for the purchase of land for and the execution of the

A.D. 1900. — various works by this Act authorised and for other purposes and such estimates are as follow :—

For construction within the borough and equipment of tramways one hundred and forty-seven thousand and eight pounds ;

For construction of tramways within the districts of the local authorities thirty-six thousand four hundred and ninety-two pounds ;

For street improvements forty-two thousand pounds :

And whereas the several works included in such estimates are permanent works within the meaning of section 234 of the Public Health Act 1875 :

And whereas an absolute majority of the whole number of the council at a meeting held on the twenty-fifth day of October one thousand eight hundred and ninety-nine after ten clear days notice by public advertisement of such meeting and of the purpose thereof in the *Burnley Express* and the *Burnley Gazette* newspapers being local newspapers published or circulating in the borough such notice being in addition to the ordinary notice required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged to the borough fund and general rate :

And whereas such resolution was published twice in the said newspapers and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the third day of January one thousand nine hundred being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas the owners and ratepayers of the borough by resolution in the manner provided by Schedule III. of the Public Health Act 1875 consented to the promotion of the Bill for this Act :

And whereas plans and sections showing the lines situation and levels of the works by this Act authorised and also a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Lancaster and are in this Act respectively referred to as the deposited plans sections and book of reference :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

A.D. 1900.

PART I.—PRELIMINARY.

1. This Act may be cited as the Burnley Corporation Act 1900. Short title.

2. This Act may be carried into execution by the Corporation acting by the council. Execution of Act.

3. This Act is divided into Parts as follows :—

Act divided into Parts.

Part I.—Preliminary.

Part II.—Tramways.

Part III.—Street Improvements.

Part IV.—Lands.

Part V.—Borrowing and Financial.

4. The following Acts and parts of Acts (that is to say) The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845) and section 3 (Interpretation of terms) and Parts II. and III. of the Tramways Act 1870 and Part II. of the Act of 1898 so far as the same are applicable to and not varied by or inconsistent with this Act are incorporated with and form part of this Act. Incorporation of Acts.

5. In this Act words to which meanings are assigned in the Act of 1898 and in enactments incorporated with this Act or which have therein special meanings have in this Act the same respective meanings and the expressions "the tramway undertaking" and "the tramways" as defined by the Act of 1898 shall wherever those expressions occur in this Act include the tramways by this Act authorised unless there be something in the subject or context repugnant to such construction. Interpretation.

PART II.—TRAMWAYS.

6. Subject to the provisions of this Act and of Parts II. and III. of the Tramways Act 1870 the Corporation may make form lay down work use and maintain the tramways herein-after described in the lines and according to the levels and within the limits of deviation shown on the deposited plans and sections and in all respects in accordance with those plans and sections with all proper rails plates works and conveniences connected therewith Provided that nothing in this Act shall authorise any interference Power to construct and work tramways.

A.D. 1900. with electric lines and works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section. The tramways herein-before referred to and authorised by this Act are—

Tramway No. 1 (in substitution for the existing tramway) 5 furlongs 7·75 chains in length all of which is double line commencing in Burnley Road in the urban district of Padiham in the county of Lancaster at a point 38 yards or thereabouts north-west of the junction of Sowerby Street with Burnley Road and terminating at the boundary of that district with the borough :

Tramway No. 2 (in substitution for the existing tramway) 4 miles 3 furlongs 2·25 chains in length all of which is double line commencing in the Padiham Road in the borough by a junction with Tramway No. 1 at its termination and terminating in Colne Road in the borough at the boundary between the borough and the township of Reedley Hallows :

Tramway No. 3 (in substitution for the existing tramway) 3 furlongs 1·82 chains in length all of which is double line commencing in Burnley Road in Reedley Hallows by a junction with Tramway No. 2 at its termination and terminating at the boundary between Reedley Hallows and Brierfield :

Tramway No. 4 (in substitution for the existing tramway) 6 furlongs 4·57 chains in length all of which is double line commencing in Burnley Road in Brierfield by a junction with Tramway No. 3 at its termination and terminating in Colne Road in Brierfield at the boundary between Brierfield and the borough of Nelson :

Tramway No. 5 (in substitution for the existing tramway) 6 furlongs 1·35 chains in length all of which is double line commencing in Manchester Road in Nelson by a junction with Tramway No. 4 at its termination and terminating in Manchester Road in Nelson at the junction of Railway Street with Manchester Road :

Tramway No. 6 1 mile 2 furlongs 0·82 chain in length of which 6 furlongs 7·77 chains is single line and 3 furlongs 3·05 chains is double line commencing in Padiham Road in the borough by a junction with Tramway No. 2 at the point of junction of Padiham Road with Accrington Road and terminating in Rosegrove Lane at a point 38 yards or thereabouts measured in a north-easterly direction from the junction of Molly Wood Lane with Rosegrove Lane :

Tramway No. 7 1 mile 1 furlong 3·84 chains in length of which 2 furlongs 3·18 chains is single line and 7 furlongs 0·66 chain is double line commencing in St. James's Street in the borough by a junction with Tramway No. 2 at a point 27 yards or thereabouts west of the western corner of Water Street and terminating in Manchester Road at a point in that road in the borough 187 yards or thereabouts south of the southernmost corner of the Rose and Crown Inn : A.D. 1900.

Tramway No. 7A 1·26 chains in length all of which is double line commencing in St. James's Street in the borough by a junction with Tramway No. 2 at a point 20 yards or thereabouts west of Bridge Street and terminating by a junction with Tramway No. 7 at a point 40 yards or thereabouts north-east of Red Lion Street :

Tramway No. 8 3 furlongs 8·54 chains in length all of which is double line commencing in St. James's Street in the borough by a junction with Tramway No. 2 at a point 13 yards or thereabouts north-east of Hall Street and terminating in Brunshaw Road at a point 17 yards or thereabouts east of Higgin Street :

Tramway No. 9 7 furlongs 2·27 chains in length all of which is double line commencing in Yorkshire Street in the borough by a junction with Tramway No. 8 at or near the junction of that street with Todmorden Road and terminating in Todmorden Road at a point opposite its junction with Rock Lane :

Tramway No. 10 3 furlongs 6·22 chains in length all of which is single line commencing in Colne Road at or near its junction with Bank Parade in the borough by a junction with Tramway No. 2 and terminating in St. James's Street in the borough by a junction with Tramway No. 2 opposite the easterly side of Curzon Street :

Tramway No. 10A 0·75 chain in length all of which is single line commencing in Curzon Street in the borough at or near its junction with St. James's Street by a junction with Tramway No. 10 and terminating in St. James's Street by a junction with Tramway No. 2 opposite the western side of Hammerton Street :

Tramway No. 11 3 chains in length all of which is double line commencing in Colne Road in the borough by a junction with Tramway No. 2 at a point opposite Pheasantford Street and terminating in Briercliffe Road at a point twenty-three yards or thereabouts north-east of Cobden Street :

A.D. 1900.

Provided that such portion of Tramway No. 2 as extends from a point twenty and two-thirds yards from the west side of Hammerton Street to a point seventeen and one-third yards therefrom in a westerly direction shall be so laid that a space of not less than nine feet and six inches shall intervene between the outside of the footpath on each side of St. James's Street and the nearest rail of the tramway unless the owners and occupiers of the houses shops or warehouses abutting upon such footpath between those points shall consent in writing to the tramway being so laid as to leave a less space than is herein-before provided for :

Provided also that the portions of Tramway No. 2 which extend from the west side of Chancery Street to a point thirty-eight yards therefrom in a westerly direction and from the west side of Bethesda Street to Brown Street respectively shall be so laid that the space between the centres of the tramways shall be one foot apart instead of two feet as shown on the deposited plans.

Tramways
not to be
commenced
till after
purchase of
existing
tramways.

7. The powers in this Act contained for the construction of Tramway No. 2 by this Act authorised shall not be exercised by the Corporation until after the Corporation shall have purchased under the provisions of the Tramways Act 1870 so much of the undertaking of the Company as is within the borough nor shall such powers be exercised as regards the construction of tramways in the respective districts of the local authorities until so much of the undertaking of the company as is within those respective districts has been purchased by the local authorities respectively or by the Corporation under the powers of this Act.

Power to
local au-
thorities to
execute
works within
their own
districts.

8. The Corporation shall before commencing the construction of Tramways Nos. 1 3 4 and 5 give notice in writing to the respective local authorities of their intention so to do and if any of the local authorities within three months after the service of such notice shall give to the Corporation notice in writing of the intention of such authority to construct the tramway within the district of the local authority giving such notice the powers by this Act given to the Corporation for the construction of the tramway in the district of the local authority giving such notice may be exercised by such local authority and shall not be exercised by the Corporation :

Provided that in the event of any local authority giving such notice they shall execute the works requisite for the construction of the tramway within their district on the same system as that adopted by the Corporation in constructing tramways within the borough and shall adapt such tramway to the same system of

traction as that used by the Corporation on the tramways within the borough and if any dispute arise between the Corporation and the local authorities or any of them as to the works to be executed by the local authorities or any of them under this Act the same shall be deemed to be a dispute within the meaning of sub-section (4) of section 27 of the Act of 1898 and every such dispute shall be settled accordingly.

9. In the event of the local authorities or any of them giving such notice as provided for in the last preceding section of this Act they shall proceed with the construction and adaptation of the tramways within their respective districts simultaneously with the construction by the Corporation of the tramways within the borough and shall complete and open the same for traffic so as to admit of their being worked by the Corporation so soon as the tramways within the borough are complete and open for traffic and in the event of failure by the local authorities or any of them so to complete and open the tramways within their respective districts it shall be lawful for the Corporation notwithstanding anything in the Act of 1898 contained to work the tramways within the borough and such of the tramways within the respective districts of the local authorities as shall be then complete and open for traffic and capable of being worked in connexion with the tramways within the borough. Provided that nothing herein contained shall relieve the Corporation from the obligation to work the whole of the tramways within the respective districts of the local authorities imposed on them by and subject to the provisions of Part II. of the Act of 1898 when and so soon as such last-mentioned tramways respectively shall be complete and open for traffic and capable of being worked throughout in connexion with the tramways within the borough and sub-sections (3) and (4) of section 27 of the Act of 1898 shall be applicable to the terms and conditions upon which the Corporation shall work the whole or any of the tramways within the respective districts of the local authorities so completed and opened as aforesaid and to the determination of any dispute which may arise respecting the rent to be paid by the Corporation for working the same or any of them.

A.D. 1900.
—
Local authorities to construct tramways in their districts simultaneously with construction of tramways in the borough.

10. The Corporation on the one hand and the local authorities or any of them on the other hand may from time to time enter into and fulfil contracts and agreements with reference to the following purposes or any of them namely :—

- (1) The purchase of the tramway undertaking of the company in the respective districts of the local authorities and the conduct by the Corporation of the proceedings and negotiations

Agreements between Corporation and local authorities as to purchase and construction of tramways.

A.D. 1900.

for the purchase of the whole of that undertaking and the division and apportionment of the price to be paid to the company between the Corporation and the local authorities or any of them respectively :

- (2) The construction by the Corporation of such of the tramways by this Act authorised as will be situate within the respective districts of the local authorities and adapting the same to the same system of traction as shall be adopted and used by the Corporation on the tramways within the borough and the division and apportionment of the cost of such construction and adaptation between the Corporation and the local authorities respectively :

And all sums expended by the Corporation in carrying into effect every such agreement within the district of any of the local authorities shall be repaid to the Corporation by the respective local authorities on completion and fulfilment of every such agreement with interest thereon at the rate of four pounds per centum per annum and any dispute arising between the Corporation and any local authority as to the amount of such expenditure shall be settled by arbitration in manner provided by section 27 of the Act of 1898.

Local authorities may raise money for construction.

11. The local authorities shall respectively have the like powers for paying all expenses incurred by them in connexion with the application for and passing of this Act and in carrying into effect the purposes of this Act within their respective districts as they would have for paying expenses incurred by them in applying for and obtaining and carrying into effect a Provisional Order pursuant to the provisions in that behalf contained in the Tramways Act 1870 and the provisions of section 20 of that Act shall be deemed to apply to all expenses incurred by the local authorities or any of them in connexion with the application for and passing of this Act and carrying the same into effect as aforesaid.

Corporation and local authorities may agree as to construction use and sale of tramways in districts of local authorities.

12. Section 28 of the Act of 1898 is hereby repealed and the Corporation on the one hand and the local authorities or any of them on the other hand may enter into and fulfil contracts and agreements for all or any of the following purposes (that is to say) :—

The construction maintenance working use management and repair of the whole or any of the tramways so far as the same are within the districts of the local authorities or any of them ;

The purchase sale and lease of all or any of the tramways so far as the same are within the districts of the local authorities

respectively and the purchase and sale of all or any plant and appliances used for the purpose of working and using such tramways or any of them ; A.D. 1900.

The interchange accommodation and forwarding of carriages passengers and traffic on to or from any tramways for the time being of the Corporation from or to any tramways of the local authorities or any of them ;

The user by the contracting parties or any or either of them of the whole or any part of their respective tramways :

Such contracts and agreements may be made in consideration of the payment of such sums in gross and upon such terms and conditions as may be agreed on between the Corporation and the local authorities respectively.

13. The proceeds of any sale by the Corporation or any of the local authorities of any tramway tramway plant or appliances in exercise of the powers contained in the last preceding section shall be applied by the Corporation or the local authority from whom any purchase shall have been made towards discharge by means of a sinking fund or otherwise of any principal moneys which may have been borrowed by the Corporation or such local authority for tramway purposes or if no such principal moneys are outstanding then in repayment of any moneys borrowed by the Corporation or such local authority for other purposes chargeable to the local rate as defined by the Tramways Act 1870 or to such other purposes as the Local Government Board may approve : Application of purchase money by local authorities.

Provided that such application shall be in addition to and not in substitution for any instalments or appropriations or payments otherwise required to be made to any sinking fund except to such extent and upon such terms as may be approved by the Local Government Board :

Provided also that borrowed moneys discharged by such application shall not be reborrowed.

14. If the local authorities or any of them shall not give such notice as is contained in the section of this Act the marginal note of which is "Power to local authorities to execute works within their own districts" or if the Corporation shall become the purchasers of the tramways within the districts of the local authorities or any of them the provisions of section 43 of the Tramways Act 1870 shall apply to the tramways constructed or purchased by the Corporation within the district of any of the local authorities as if the Corporation were the promoters of a tramway within the meaning of that section. Application of section 43 of Tramways Act 1870.

15. In constructing Tramways Nos. 1 2 3 4 and 5 by this Act authorised the Corporation and the local authorities respectively Power to remove existing

A.D. 1900.
tramways
and utilise
materials.

(but as to the local authorities within their respective districts only) may take up and remove the existing tramways or any of them and may discontinue or suspend the traffic thereon for such period as may be necessary for constructing the said tramways Nos. 1 2 3 4 and 5 or any of them and may sell dispose of or utilise in the construction of the said tramways or any of them all or any of the materials now forming the existing tramways or any of them Provided always that in determining the sum to be paid by the local authorities or any of them to the Corporation in respect of the construction by the Corporation of such of the tramways by this Act authorised as are within the respective districts of the local authorities under any agreement made between the Corporation and the local authorities or any of them under powers contained in the section of this Act the marginal note to which is "Agreements between Corporation and local authorities as to purchase and construction of tramways" credit shall be given by the Corporation to the local authorities respectively for the value of all materials so sold disposed of or utilised from any of the existing tramways within the respective districts of the local authorities and such value shall in case of dispute be settled by arbitration in manner provided by section 27 of the Act of 1898.

Cheap fares
for labouring
classes.

16. Section 12 of the Act of 1898 is hereby repealed and the following provisions in lieu thereof shall have effect :—

The Corporation shall and they are hereby required to run at least two carriages each way every morning in the week and every evening in the week (Sundays Christmas Day and Good Friday always excepted) at such hours not being later than eight in the morning or earlier than five in the evening respectively on every week day except Saturdays and on Saturdays not being later than eight in the morning or earlier than half past twelve in the afternoon as the Corporation think most convenient for artizans mechanics and daily labourers at fares not exceeding one halfpenny per mile (the Corporation nevertheless not being required to take any fare less than one penny) Provided that in case of any complaint made to the Board of Trade of the hours appointed by the Corporation for the running of such carriages the said Board shall have power to fix and regulate the same.

Power to
Corporation
to alter
bridge in
Manchester
Road and

17. In constructing Tramway No. 7 by this Act authorised in Manchester Road in the borough the Corporation may subject to the provisions of the section of this Act whereof the marginal note is "For protection of Leeds and Liverpool Canal Company" alter the arch of the bridge carrying that road over the Leeds

and Liverpool Canal in the manner shown upon the deposited plans and sections and the Corporation may for the effectual working of Tramway No. 8 by this Act authorised attach to the arch of the aqueduct carrying the said canal over Yorkshire Street in the borough such brackets insulators and other apparatus as may be necessary for the effectual working of the said tramway.

A.D. 1900.
to affix con-
ductors to
Yorkshire
Street
aqueduct.

18. For the protection of the Lancashire County Council (in this Act called "the county council") the following provisions shall apply and have effect:—

For pro-
tection of
Lancashire
County
Council.

- (1) Before any tramways by this Act authorised laid along the main road running through Reedley Hallows are opened for traffic the said road shall be widened to the extent shown upon the plan signed by the county surveyor and the surveyor to the Corporation and the footpaths on the widened portion of the road shall be kerbed and cindered and the carriageway macadamised to the satisfaction of the county surveyor by and at the expense of the Corporation or other authority or body constructing such tramways:
- (2) The Corporation or other authority or body constructing the tramways as the case may be shall at their own expense pave so much of such main road along which any tramway authorised by this Act is laid as lies between the rails and as extends eighteen inches beyond the rails of and on each side of such rails with granite cubes or setts or such other paving as the surveyor of the county council may approve:
- (3) Notwithstanding anything in this Act contained an inter-lacing line only shall be laid for a distance of thirty yards from the centre of the Padiham Bridge along the road to the north side of such bridge and of thirty yards from the centre of the bridge to the south side:
- (4) The Corporation or the local authority constructing the tramways by this Act authorised in the district of Brierfield and the borough of Nelson respectively shall pay to the authority entitled to receive the same the value of any paving works or materials which have been done or provided by the Corporation of Nelson pursuant to an agreement bearing date the twenty-fourth day of January one thousand eight hundred and ninety-nine and made between the county council of the one part and the Corporation of Nelson of the other part and by the Brierfield Urban District Council pursuant to an agreement bearing date the eighteenth day of October one thousand eight hundred and ninety-eight and made between the county council of the one part and the Brierfield Council of the other part for the maintenance or

A.D. 1900.

improvement of so much of the main roads whereon such tramways respectively are constructed and which may be capable of being utilised in the construction of such tramways and in the paving and making good of so much of the road as will thereafter be maintainable by the Corporation or local authority so constructing the tramways in accordance with section 28 of the Tramways Act 1870. Any difference as to the amount payable under this sub-section or the authority to whom it is payable shall be referred to and determined by the Local Government Board or by an arbitrator appointed by them who may vary the said agreements or either of them with regard to the annual sums to be paid by the county council if they or he consider the justice of the case so requires.

Inspection
by Board of
Trade.

19. The tramways by this Act authorised shall not be opened for public traffic until they have been inspected and certified to be fit for such traffic by the Board of Trade.

Tramways
to be kept on
level of sur-
face of road.

20. If and whenever after the passing of this Act any road authority alters the level of any road along or across which any tramway by this Act authorised is laid or authorised to be laid the Corporation or the local authority owning such tramway as the case may be may and shall alter or (as the case may be) lay their rails so that the uppermost surface thereof shall be on a level with the surface of the road as altered.

Plan of pro-
posed mode
of construc-
tion.

21. In addition to the requirements of section 26 of the Tramways Act 1870 the Corporation and the local authorities respectively (in the event of the local authorities or any of them exercising the powers of constructing tramways within their respective districts as by this Act authorised) shall before they open or break up any road for the purpose of constructing laying down maintaining and renewing any of the tramways by this Act authorised within their respective districts lay before the Board of Trade a plan showing the proposed mode of constructing laying down maintaining and renewing such tramways and a statement of the materials intended to be used therein and the Corporation and the local authorities respectively shall not commence the construction laying down maintenance and renewal of any of the tramways or part of any of the tramways respectively until such plan and statement have been approved by the Board of Trade and after such approval the works shall be executed in accordance in all respects with such plan and statement and under the superintendence and to the reasonable satisfaction of the surveyor of the road authority within whose district any such tramways are laid as provided by section 26 of the said Act.

22. The tramways by this Act authorised shall be constructed on a gauge of four feet. Provided always that so much of section 34 of the Tramways Act 1870 as limits the extent of the carriages used on any tramway beyond the outer edge of the wheels of such carriage shall not apply to carriages used on the tramways by this Act authorised but no such carriage shall exceed a maximum width of six feet six inches without the consent in writing of the Board of Trade and for all other purposes of section 34 of the Tramways Act 1870 the Corporation and the local authorities shall be deemed to be the promoters of the tramways within their respective districts.

A.D. 1900.

Gauge of tramways.

23. The rails of the tramways by this Act authorised shall be such as the Board of Trade may approve.

Rails of tramways.

24.—(1) The Corporation and the owners or lessees for the time being of the tramways or any of them shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the tramways by this Act authorised and the substructure upon which the same rest and if the Corporation or such owners or lessees respectively at any time fail to comply with this provision or with the provisions of section 28 of the Tramways Act 1870 they shall be subject to a penalty not exceeding five pounds for every day on which such non-compliance continues.

Penalty for not maintaining rails and roads.

(2) In case it is represented in writing to the Board of Trade by the road authority of any district in which the tramways by this Act authorised or any portion thereof are or is situate or by twenty inhabitant ratepayers of such district that the Corporation or any of such owners or lessees respectively have made default in complying with the provisions in this section contained or with any of the requirements of section 28 of the Tramways Act 1870 the Board of Trade may if they think fit direct an inspection by an officer to be appointed by the said Board and if such officer report that the default mentioned in such representation has been proved to his satisfaction then and in every such case a copy of such report certified by a secretary or an assistant secretary of the Board of Trade may be adduced as evidence of such default and of the liability of the Corporation or any of such owners or lessees to such penalty or penalties in respect thereof as is or are by this section imposed.

25. Every local authority shall at all times have free access to and communication with all their sewers and drains and power to lay lateral and private drains to communicate therewith without the consent or concurrence of the Corporation or such owners or

Local authority to have access to sewers.

A.D. 1900. — lessees respectively and the provisions contained in sections 32 and 33 of the Tramways Act 1870 shall be applicable in the case of any sewer or private drain of or under the control of the local authority as if the same were a pipe for the supply of gas or water.

Power to
widen
roadways.

26. It shall be lawful for the Corporation and the local authorities respectively for the purpose of constructing and laying down any tramway by this Act authorised to increase the width of any roadway in any street or road within their respective districts in which it is proposed to lay any such tramway by reducing the width of any footpath in any such street or road provided that no footpath shall be so reduced as to be less than five feet wide:

Provided also that the Corporation shall not be entitled to reduce the width of any footpath in any street or road in the district of any local authority without the written consent of such authority but such consent shall not be unreasonably withheld and if any question shall arise between the Corporation and the local authority of any district in which a footpath is proposed to be reduced as to whether such footpath shall be reduced or whether such consent is unreasonably withheld the same shall be referred to arbitration in accordance with the provisions of section 27 of the Act of 1898.

Single or
interlacing
lines may
be laid as
double with
consent
of local
and road
authorities
and Board
of Trade.

27. Any of the tramways by this Act authorised to be laid as a single or interlacing line may at the option and with the consent in writing of the local authority and of the road authority and with the consent in writing of the Board of Trade be laid as a double line. Provided nevertheless that in substituting such double line for such single or interlacing line as aforesaid no rail shall be so laid that a less space than nine feet six inches shall intervene between such rail and the outside of the footpath on either side of the road if any owner or occupier of any house shop or warehouse abutting upon the place where such rail is proposed to be laid by notice in writing under his hand given to the Corporation within twenty-one days of the receipt of notice of their intention to construct such double line express his objection thereto.

Passing
places to be
constructed
where less
than 9 feet
6 inches
width left
between

28. Where in any road in which a double line of tramway is laid there shall be less width between the outside of the footpath on either side of the road and the nearest rail of the tramway than nine feet six inches the Corporation or the local authorities respectively as the case may be shall and they are hereby required to construct a passing place or places connecting the one

tramway with the other and by means of such passing place or places the traffic shall when necessary be diverted from one tramway to the other.

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—
footway and
tramway.

29. The Corporation or the local authorities or their lessees respectively as the case may be may subject to the provisions of this Act with the consent of the local authority and road authority (which consent shall not be unreasonably withheld) and where any road is opposite to lands or buildings vested in or under the control of Her Majesty's Principal Secretary of State for the War Department with the consent of such Secretary of State make maintain alter and remove such crossings passing places sidings junctions and other works in addition to those particularly specified in and authorised by this Act as they find necessary or convenient for the efficient working of the tramways by this Act authorised or for providing access to any warehouses stables or carriage-houses or works of the Corporation or their lessees:

Power to
make
additional
crossings &c.

Provided that if before commencing to make alter or remove any such work as aforesaid in the district of any local authority or road authority the Corporation or their lessees deliver to the authority a plan showing the position of the work proposed to be made altered or removed as the case may be and if the authority do not within fourteen days give notice to the Corporation or their lessees of any objection such authority shall be taken to have consented to the making alteration or removal of such work as shown by the said plan:

Provided further that in the construction of any such works no rail shall be so laid that a less space than nine feet six inches shall intervene between it and the outside of the footpath on either side of the road if one third of the owners or one third of the occupiers of the premises abutting on the place where such less space shall intervene shall by writing under their hands addressed and delivered to the Corporation or the local authorities or their lessees respectively as the case may be within three weeks after receiving from the Corporation or the local authorities or their lessees respectively as the case may be notice in writing of their intention express their objection thereto.

30. The Corporation or their lessees shall not permit any of their engines or carriages to stop or stand upon their tramway opposite or near to the entrance to any lands or buildings vested in or under the control of Her Majesty's Principal Secretary of State for the War Department in such manner as to interfere with access to or from such lands or buildings.

For pro-
tection of
Secretary
of State
for War.

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For protection of
Postmaster-General.

Temporary tramways may be made when necessary.

Temporary stoppage of streets.

Application of road materials excavated in construction of works.

31. The provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any alteration of or interference with any telegraphic line belonging to or used by the Postmaster-General. The expression "telegraphic line" in this Act has the same meaning as in the Telegraph Act 1878.

32. Where by reason of the execution of any work affecting the surface or soil of any road along which any tramway is laid or authorised to be laid it is in the opinion of the Corporation or the local authorities or their lessees respectively as the case may be necessary or expedient temporarily to remove or discontinue the use of such tramway or any part thereof the Corporation or the local authorities or their lessees respectively as the case may be may construct in the same or any adjacent road and maintain so long as occasion may require a temporary tramway or temporary tramways in lieu of the tramway or part of tramway so removed or discontinued.

33. The Corporation may during the execution and for the purposes of any work by this Act authorised (but as regards streets within the respective districts of the local authorities only with the consent of the local authority for the district affected) stop up any street and prevent all persons other than those bona fide going to or returning from any house in the street from passing along and using the same for any reasonable time. The Corporation shall provide reasonable access for all persons so bona fide going to or returning from any such house.

34. Any paving metalling or material excavated by the Corporation in the construction of the tramways by this Act authorised from any road or tramway under the jurisdiction or control of or owned by any road authority may be applied by the Corporation so far as may be necessary in or towards the reinstating of the road and the maintenance for six months after completion of any of the tramways within the district of such road authority of so much of the roadway on either side of such tramways as the Corporation are by section 28 of the Tramways Act 1870 required to maintain and the Corporation shall if so required deliver the surplus paving metalling or material not used or required to be retained for the purposes aforesaid to the surveyor of the road authority or to such person or persons as he may appoint to receive the same. Provided that if within seven days after the setting aside of the surplus arising from the excavation of any such paving metalling or material and notice duly given such surplus is not removed by such surveyor or by

some other person named by him for that purpose such surplus paving metalling or material shall absolutely vest in and belong to the Corporation and may be dealt with removed and disposed of by them in such manner as they think fit. Any difference between the Corporation and any road authority or surveyor or other person with reference to any of the matters aforesaid shall be settled by a referee to be nominated by the Board of Trade on the application of either party.

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35. If the tramways numbered 1 to 5 by this Act authorised shall not be completed within five years and if the tramways numbered 6 to 11 by this Act authorised shall not be completed within eight years from the passing of this Act then on the expiration of those periods respectively the powers by this Act granted to the Corporation for executing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Period for completion of works.

36. Subject to the provisions of Part II. of the Act of 1898 so far as the same are applicable and notwithstanding anything to the contrary contained in the Tramways Act 1870 or any other Act or Order the Corporation may place and run carriages on and may demand and take tolls and charges in respect of the tramways by this Act authorised and may provide all such depôts stations stables buildings horses cars rolling stock engines machinery steam cable electric and other plant apparatus and appliances as may be requisite or convenient for the working or user of the tramways by animal or mechanical power and may sell and dispose of or exchange such of the before-mentioned articles and any other such articles and things as may have been purchased by or may for the time being belong to them as may from time to time be no longer required. Provided that the provisions of section 22 (For protection of Postmaster-General) of the Act of 1898 shall extend and apply to any work or act executed or done for the supply of electrical energy and of plant and apparatus necessary for such supply for any purposes under this Act.

Power to work tramways.

37. The regulations authorised by the Tramways Act 1870 to be made by the promoters of any tramway and their lessees may with respect to any tramways or portions of tramways for the time being belonging to or worked by the Corporation be made by the Corporation alone.

Regulations.

38. All works to be executed by the Corporation in any road for working tramways by mechanical power in pursuance of any of the powers of this Act or the Act of 1898 shall be deemed to

Mechanical power works to be subject to sec. 30 of Tramways Act 1870.

A.D. 1900: be works of a tramway subject in all respects to the provisions of section 30 of the Tramways Act 1870 as if they had been therein expressly mentioned.

Working
arrange-
ments by
agreement.

39.—(1) Subject to the provisions of this Act the Corporation on the one hand and the Nelson Corporation the Colne and Trawden Company and the Barrowford District Council or other the corporation company or person for the time being owning or working any of the said light railways and tramways or any portion thereof or any of them on the other hand may (as regards the said corporations and district council respectively) after deciding to do so by special resolution as defined by the Light Railways Act 1896 enter into and carry into effect and rescind contracts agreements and arrangements with respect to the following purposes or any of them (that is to say):—

The working use running over management and maintenance by the contracting parties of their respective light railways tramways and works or any part or parts thereof respectively and the employment of officers and servants;

The supply and maintenance under and during the continuance of any such agreement as aforesaid for the light railways or tramways of the contracting parties or any part or parts thereof being worked and used by the other of them of stock and plant necessary for the purposes of such agreement;

The supply by or to the Corporation for the purposes of this Act and subject to the provisions thereof of electrical energy and of plant or apparatus necessary for such supply;

The payments to be made and the conditions to be performed with respect to the matters aforesaid;

The management regulation interchange collection transmission and delivery of traffic upon or coming from or destined for the light railways or tramways of the contracting parties;

The fixing collection payment appropriation apportionment and distribution between the contracting parties of the rates income and profits levied taken or arising from the light railways tramways and works of the contracting parties or any part thereof.

(2) Any such agreement shall be submitted to and shall be subject to the approval of the Board of Trade and if the agreement be made with any local authority company or person working but not owning a light railway or tramway affected thereby notice of the proposed agreement and of the terms thereof shall be given by such authority company or person to the owner at least twenty-eight days before the agreement is submitted to the Board of Trade and before giving their approval

the Board of Trade shall consider any objections which such owner may lay before them. A.D. 1900.

(3) — (a) The Corporation shall not themselves supply or enter into any agreement for the supply of electrical energy to them in any district outside the district of the party giving such supply except with the consent of any local authority company or persons who at the time when such agreement is proposed are authorised by Parliament or the Board of Trade to supply or are supplying electrical energy in such district :

(b) Where the Corporation are so supplying or where such an agreement has been made and energy is being supplied to the Corporation in accordance with such an agreement if any local authority company or persons being authorised by Parliament or the Board of Trade to supply electrical energy within such district give notice to the Corporation that they will undertake to supply the same for the purposes of this Act within such district at a price not exceeding the price at which the Corporation are so supplying or which is for the time being chargeable under such agreement and to deliver it at some equally convenient point and under the like conditions as the Corporation are then supplying or obtaining a supply under such agreement then at the expiration of four years from the date of such notice such local authority or company or persons may require the Corporation to cease supplying or taking the supply of electrical energy under such agreement and in that case such local authority company or persons shall themselves if so required by the Corporation continue such supply to the Corporation in accordance with such agreement as aforesaid so far as it may be properly applicable to the case and if any question arises upon that point such question shall be referred to arbitration under this Act.

40. If in working any light railway under any agreement entered into by the Corporation under the provisions of this Act the revenue derived by the Corporation from any such light railway shall be insufficient to meet the charges upon it the deficiency shall be deemed a deficiency in the tramway revenue within the meaning of section 32 sub-section (5) of the Act of 1898 and shall be provided by the Corporation in the same manner as a deficiency under that section may be provided. Provision in case of deficiency of revenue in working light railways.

41. Notwithstanding anything contained in Schedule A. to the Order of 1882 and in the Schedule to the Order of 1887 and in section 20 of the Act of 1898 the local authority may make regulations sanctioning a rate of speed to be observed in travelling on the tramways not exceeding twelve miles an hour. Speed and amendment of Tramways Act 1870 as to byelaws by local authority.

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For protec-
tion of Lan-
cashire and
Yorkshire
Railway
Company.

42. For the protection of the Lancashire and Yorkshire Rail-
way Company (in this section called "the company") the
following provisions shall unless otherwise agreed between the
Corporation (which expression in this section shall include any
local authority by whom the powers of this Act may be exercised)
and the company be observed and have effect (that is to say) :—

(1) In this section the word "apparatus" includes conductors
wires tubes pipes mains cables posts ropes and apparatus
and any similar appliances to be used as or for the purposes
of a motive power for the carriages running on any tramways
and includes also any excavations channels and pipes for the
purposes of such apparatus :

(2) Where any tramway by this Act authorised to be con-
structed or reconstructed or altered or any tramway on or
in connexion with which any apparatus is to be constructed
or used is laid along a road which is carried by means of
a bridge over any railway of the company the Corporation
shall so construct reconstruct or alter and maintain and use
the said tramway and apparatus as not to alter or interfere
with the structure of any such bridge or of the approaches
thereto unless such alteration or interference be absolutely
necessary for the purposes of such repair alteration or
reconstruction :

(3) In the event of any such alteration or interference the
Corporation shall together with the notice required in such
cases by section 26 of the Tramways Act 1870 submit to the
company detailed drawings and specifications showing the
proposed work as affecting such bridge and if any difference
arise between the Corporation and the company as to such
alteration or interference the same shall be left to the
decision of the Board of Trade and the Corporation shall
so construct and maintain the tramway and apparatus as
not injuriously to affect the stability of such bridge or the
approaches thereto :

(4) In the event of any injury being caused to any such bridge
or the approaches thereto by the construction reconstruction
alteration maintenance repairing user or removal of the
tramways or apparatus the company may at the expense in
all things of the Corporation forthwith in case of emergency
and in other cases after giving seven clear days' notice in
writing of their intention so to do restore such bridge and
approaches or the part or parts thereof which may be so
injured to as good a state and condition as they were in
before such injury was occasioned :

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(5) All works which may be necessary in constructing reconstructing altering and maintaining the tramways or apparatus over any such bridge and the approaches thereto shall be constructed and maintained in all things at the expense of the Corporation and under the superintendence and to the reasonable satisfaction of the engineer of the company:

(6) In case it shall become necessary in consequence of the existence or user of the tramways or apparatus to strengthen the fabric of any such bridge the company may after giving to the Corporation seven clear days' notice thereof execute such works as their engineer may reasonably deem necessary but in all things at the expense of the Corporation:

(7) If it shall become necessary for effecting such strengthening that the working and use of any portion of the tramways shall be wholly or in part stopped or delayed and the company shall (except in cases of emergency when they shall give the longest notice practicable) give the Corporation seven clear days' notice in writing requiring such stoppage or delay the working or use of such portion of the tramways shall be stopped or delayed accordingly but only for so long as may be absolutely necessary for effecting such strengthening and the company shall not be liable for any compensation claim demand damages costs or expenses for or in respect of such stoppage or delay:

(8) The sleepers and other materials forming the substructure of the tramways where the same cross any such bridge over the railway or are laid along the approaches thereto shall subject to the provisions of this section be such as shall be reasonably approved of by the company:

(9) No apparatus shall be affixed or attached to any house building or property belonging to the company or to any bridge belonging to or maintainable or repairable by the company without the consent in writing of the company:

(10) Whenever and so often as the company shall require under their existing powers to lengthen strengthen reconstruct alter or repair any bridge over which any tramway of the Corporation is laid or the approaches thereto and they shall find it necessary for effecting any of such purposes that the working and user of any of the said tramways over any such bridge or approaches shall be wholly or partly stopped or delayed or that the tramways or any apparatus connected therewith shall be wholly or in part temporarily diverted taken up or removed and shall except in cases of emergency give to the Corporation seven clear days' notice in writing

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requiring such stoppage delay or diversion taking up or removal the working or user of the tramways shall be stopped or delayed or the tramways or apparatus shall be diverted or taken up or removed accordingly by and at the expense in all things of the Corporation and under the superintendence of the engineer of the company (if such engineer shall give such superintendence) but only for so long as the company may find it to be absolutely necessary for effecting such purpose and the company shall not be liable for any compensation claims demands damages costs and expenses for or in respect of such stoppage or delay or in any way relating thereto In cases of emergency or in other cases if the Corporation after such notice make default in diverting taking up or removal of any such tramway or apparatus the company may at the expense of the Corporation effect such diversion taking up or removal :

- (11) In working the tramways by this Act authorised and specified in the first column of the following table no tramcar or other vehicle used thereon shall without the consent in writing of the company under their common seal be stopped or permitted to stop in front of the entrance to the several stations named in the second column of the said table or within a distance of ten yards on either side thereof except (in the cases of the Burnley Barracks and Rose Grove passenger stations) for so long only as shall be necessary to take up or set down passengers :

No. of Tramway.	Name of Station.
2	Burnley Barracks passenger
6	Rose Grove passenger
7	Burnley (Manchester Road) goods

- (12) Notwithstanding anything contained in this Act the Corporation shall not acquire otherwise than by agreement any land belonging to the company except so much thereof as shall be actually necessary for the purposes of the Street Improvement Work No. 17 by this Act authorised :

- (13) If any difference shall arise under this section between the Corporation and the company touching anything to be done or omitted to be done or not to be done or the reasonableness of any requirements or works or of any

charges or in any manner in connexion with the foregoing provisions of this section or as to the land to be acquired otherwise than by agreement for the purposes of the said street improvement work No. 17 the matter in difference shall unless otherwise agreed be determined by a referee to be nominated by the Board of Trade under section 33 of the Tramways Act 1870. A.D. 1900.

43. All orders regulations and byelaws made by the Board of Trade under the authority of this Act shall be signed by a secretary or an assistant secretary of the Board. Orders &c. of Board, of Trade.

44. Any penalty under this Act or under any byelaws or regulations made under this Act may be recovered in manner provided by the Summary Jurisdiction Acts. Recovery of penalties.

45. For the purpose of using mechanical power it shall be lawful for the Corporation to acquire hold and use patent and other rights and licences (not being exclusive) in connexion with their tramway undertaking. Power to acquire patent rights.

46. Nothing in this Act contained shall exempt the Corporation or the tramways from the provisions of any general Act relating to tramways passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of charges authorised by the Act of 1898 or by this Act. Provision as to general Tramway Acts.

47. The provisions of sub-section (4) of section 32 of the Act of 1898 (Application of tramway revenue) shall be read and have effect as if the words "ten thousand pounds" were inserted therein in place of the words "five thousand pounds." Amending section 32 of Act of 1898.

PART III.—STREET IMPROVEMENTS.

48. Subject to the provisions of this Part of this Act the Corporation may make and maintain in the lines and situations and upon the lands shown upon the deposited plans and described in the deposited book of reference and according to the levels shown on the deposited sections the following street improvements (that is to say) :— Power to make street works.

No. 1 The widening of Padiham Road on the north side thereof commencing at a point seven yards east of the south-easterly corner of Hazel Mount and terminating at a point opposite to and twenty-three yards north of the north-west corner of Palace House :

No. 2 The widening of Padiham Road on the north side thereof commencing at the east side of Claremont Street and terminating at the west side of Broughton Street :

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No. 3 The widening of Padiham Road on its north side commencing at the east side of Broughton Street and extending for a distance of fifty-four yards along Padiham Road in a south-easterly direction :

No. 4 The widening of Padiham Road on its north side from a point sixteen yards east of the south-easterly corner of the Derby Hotel and extending for a distance of twenty-two yards along Padiham Road in an easterly direction :

No. 5 The widening of Padiham Road on its north side from the western side of Redruth Street and extending for a distance of twenty-seven yards along Padiham Road in a westerly direction :

No. 6 The widening of Westgate on the south side commencing at a point twelve yards west of the centre of the Leeds and Liverpool Canal and terminating at a point about thirteen yards east of the centre of the Leeds and Liverpool Canal and including the widening of the southerly side of the existing bridge carrying Westgate over the Leeds and Liverpool Canal to the extent shown on the deposited plans from a point ten yards west of the centre of the said canal to a point ten yards east of the centre thereof :

No. 7 The widening of St. James's Street on the southerly side commencing at the retaining wall on the west side of the River Calder and terminating at a point forty yards measured east from the said point of commencement and including the widening of the bridge over the said River Calder to the extent shown on the deposited plans from the said retaining wall to a point eleven yards east of the said retaining wall :

No. 8 The widening of St. James's Street on the northerly side commencing on the west side of Hall Street and extending for a distance of twenty-two yards along St. James's Street in a south-westerly direction :

No. 9 The widening of Colne Road and Bank Parade on the westerly side thereof respectively commencing in Colne Road at a point eighteen yards south of the centre of the Mineral Railway and terminating in Bank Parade at a point one hundred and nine yards north of Bankhouse Street :

No. 10 The widening of Colne Road on the easterly side thereof commencing at a point eight yards north of the centre of the entrance to Bank Hall and terminating at the retaining wall forming the northerly boundary of the Leeds and Liverpool Canal including the widening of the bridge carrying Colne Road over the Mineral Railway to the extent shown on the deposited plans and for a distance of seven

yards on each side of the centre of that railway and including the widening of the bridge carrying Colne Road over the Leeds and Liverpool Canal to the extent shown on the deposited plans from a point five yards north of the centre of the said canal to a point six yards south of the centre thereof:

No. 11 The widening of Colne Road on the west side commencing at a point nineteen yards north of Jackson Street and extending for a distance of eighty-four yards in a northerly direction along that road from the point of commencement:

No. 12 The widening of Colne Road on the west side commencing at a point fifteen yards south of Hurtle Street and extending for a distance of nineteen yards along Colne Road in a southerly direction from the point of commencement:

No. 13 The widening of Colne Road on the west side commencing at the northerly side of Byerden Lane and terminating at the south side of Newman Street:

No. 14 The widening of Colne Road on the east side commencing at the south side of Rushworth Street and extending for a distance of twenty-two yards along Colne Road in a southerly direction:

No. 15 The widening of Colne Road on the east side commencing at a point four yards north of Haulgh Street and extending for a distance of seventeen yards along Colne Road in a northerly direction:

No. 16 The widening of Colne Road on the west side commencing on the north side of Blacker Street and terminating at the boundary of the borough with the township of Reedley Hallows:

No. 17 The rounding off of the north-east corner of Accrington Road and Rosegrove Lane commencing in Accrington Road at a point thirteen yards on the east side of Rosegrove Lane and terminating in Rosegrove Lane at a point twenty-three yards on the north side of Accrington Road:

No. 18 The widening of Todmorden Road on the easterly side commencing at the southerly side of Outwood Street and extending in a southerly direction along Todmorden Road for a distance of eighty-three yards:

No. 19 The widening of Todmorden Road on the easterly side commencing at the northern boundary wall of the grounds attached to Wood Grove and terminating at the Rabbit Walk:

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No. 20 The widening of Todmorden Road on the easterly side thereof in the township of Habergham Eaves in the county of Lancaster commencing at the Rabbit Walk and terminating at a point opposite the junction of Todmorden Road with Rock Lane :

No. 21 The widening of Bank Parade on the easterly side thereof commencing on the southerly side of School Street fifty-six yards north of a point opposite Bankhouse Street and extending for a distance of ninety yards in a southerly direction :

No. 22 The widening of Curzon Street on the east side and rounding off the corner of Curzon Street and Bankhouse Street commencing at the south-easterly corner of Bankhouse Street and terminating at the northerly side of Parker Street :

No. 23 The widening of Curzon Street on the east side commencing at a point eight yards from the south corner of Parker Street and terminating at the centre of the bridge carrying Market Street over the River Brun :

No. 24 The widening of Curzon Street on the east and west sides thereof between Howe Street and St. James's Street :

No. 25 The widening of Coal Clough Lane on the easterly side from the northerly side of Scott Park Road and extending for a distance of seventeen yards along Coal Clough Lane in a northerly direction.

Period for
completion
of works.

49. If the works numbered 1 to 16 and 25 respectively authorised by this Part of this Act shall not be completed within five years from the passing of this Act and if the works numbered 17 to 24 respectively authorised by this Part of this Act shall not be completed within six years from the passing of this Act then on the expiration of those periods respectively the powers by this Act granted to the Corporation for executing those works or otherwise in relation thereto shall cease to be exercised except as to so much thereof as shall then be completed Provided that the cesser of those powers shall not prevent the Corporation from executing from time to time thereafter any works in connexion with so much of those works as is then completed.

Power to
make
subsidiary
works.

50. Subject to the provisions of this Act and within the limits defined on the deposited plans the Corporation in connexion with the street improvements authorised by this Act and for the purposes thereof may make and maintain all necessary approaches retaining walls piers abutments embankments girders cantilevers bridges arches sewers drains goits culverts excavations

and other works and conveniences and may make junctions and communications with any existing streets which may be intersected or interfered with by or be contiguous to the said street improvements and may make diversions widenings or alterations of lines or levels of any existing streets for the purpose of connecting the same with the said street improvements or otherwise and may alter divert stop up inclose use or appropriate all or any part of any street square place court alley or passage whether a thoroughfare or not or of any thoroughfare road lane or way or of any drain sewer channel void ground or other property shown on the deposited plans the Corporation providing a proper substitute before interrupting the flow of sewage in any drain or sewer Provided that the provisions of section 308 of the Public Health Act 1875 (Compensation in case of damage by local authority) shall apply as if the acts done under the authority of this section were done in exercise of the powers of that Act.

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51. The Corporation within the limits of deviation defined upon the deposited plans may raise sink or otherwise alter or cause to be altered the position of any of the steps areas cellars windows and channels pipes or spouts belonging to any house or building and also the drains mains and the leaden or other pipes which for the purpose of conveying water or gas to any house or other place shall be laid into or from any main or pipe laid down by the Corporation and may remove all other obstructions so as the same be done with as little delay and inconvenience to the inhabitants as the circumstances of the case will admit and the provisions of section 308 of the Public Health Act 1875 shall apply as if the acts done under the authority of this section were done in exercise of the powers of that Act.

Power to alter steps areas pipes &c.

52. The Corporation may sell the materials of the houses and buildings which may be purchased or taken by them under the powers of this Part of this Act and the proceeds of any such sale shall be applied to the general purposes of the borough fund.

Power to sell materials.

53. The sites of all houses and all lands purchased by the Corporation under the powers of this Part of this Act and laid into and appropriated for public highways shall when and so soon as the same are so laid into and appropriated for public highways be and for ever thereafter form part of the public highways and shall be repaired and maintained and kept in repair in such and the same way and manner as the public highways in the borough are for the time being by law maintained repaired and kept in order.

Lands laid into new streets to be public highways.

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PART IV.—LANDS.

Compulsory purchase of lands.

54. Subject to the provisions of this Act the Corporation may enter upon take and use compulsorily or by agreement all or any of the lands shown on the deposited plans and described in the deposited book of reference which they may require for the purposes of the works by this Act authorised and as regards the said street improvements for the purpose of securing sites for the erection of suitable houses and buildings adjoining thereto.

Period for compulsory purchase of lands.

55. The powers of the Corporation for the compulsory purchase of lands easements or rights for the purposes of the street improvements numbered 1 to 16 inclusive and numbered 25 authorised by this Act shall cease after the expiration of three years from the passing of this Act and the like powers for the purposes of the street improvements numbered 17 to 24 both inclusive authorised by this Act shall cease after the expiration of five years from the passing of this Act.

Power to appropriate lands for purposes of Act.

56. Subject to the provisions of this Act the Corporation may with the sanction of the Local Government Board and subject to such conditions as that Board may prescribe appropriate and use for any of the purposes of this Act any lands from time to time belonging to them as part of their corporate estate or vested in them as a sanitary authority and which are not required for the purposes for which the same were acquired.

Additional lands by agreement.

57. The Corporation may (in addition to any lands they are authorised to acquire and hold under the powers of this Act) acquire and hold any lands not exceeding ten acres necessary for all or any of the purposes of this Act by agreement either in fee simple by purchase or by way of exchange or on lease for a term of which five hundred years at the least shall remain unexpired Provided that the Corporation shall not create or permit a nuisance on any such lands.

Consideration for such acquisition.

58. The consideration for any such acquisition may be either money or land or a mixed consideration of money and land and on any exchange the Corporation may give or take any money for equality of exchange.

Correction of errors &c. in deposited plans and book of reference.

59. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten days notice to the owners lessees and occupiers of the lands in question may apply to two justices (not being members of the council) for the correction thereof and if it appears to the justices that the omission mis-

statement or wrong description arose from a mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respects any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Lancaster and a duplicate thereof shall also be deposited with the town clerk and such certificate and duplicate respectively shall be kept by such clerk of the peace and town clerk respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Corporation to take the lands and execute the works in accordance with such certificate.

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A copy of or an extract from such certificate purporting to be under the hand of the clerk of the peace or town clerk aforesaid (which copy or extract shall be given when required under his hand to any person interested) shall be conclusive evidence of such correction.

60. The Corporation may by agreement purchase any right to take any easement (not being an easement or privilege of water in which persons other than the grantors have an interest) which they may require for the purposes of this Act and for the purpose of every such purchase the term "lands" in the Lands Clauses Acts shall be deemed to include "easements."

Purchase of easements.

61. Persons empowered by the Lands Clauses Consolidation Act 1845 to sell and convey or release lands may subject to the provisions of the Lands Clauses Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement of water in which persons other than the grantors have an interest) required by the Corporation for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid.

Persons empowered by Lands Clauses Acts to sell lands may grant easements &c.

62. For the protection of the Leeds and Liverpool Canal Company (in this section called "the canal company") the following provisions shall unless otherwise agreed between the canal company and the Corporation be observed and have effect (that is to say):—

For protection of Leeds and Liverpool Canal Company.

(1) All works by this Act authorised affecting any bridge over the canal towing path works or lands of the canal company or the approaches to such bridge shall be carried out in accordance with plans sections and specifications to be submitted to and approved by the canal company previous

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to the commencement of any such works and under the superintendence and to the reasonable satisfaction of the engineer for the time being of the canal company. Provided that if any difference shall arise between the Corporation and the canal company as to the said plans sections and specifications or as to the mode of carrying out any such works or as to the reasonableness of any requirement of such engineer the same shall be determined by arbitration in manner herein-after provided :

(2) From and after the completion of the alteration of the arch of the bridge carrying the Manchester Road over the said canal by this Act authorised the Corporation shall for ever thereafter repair and maintain the whole of the structure of the said bridge and the roadway and footpaths thereover and the approaches thereto to the reasonable satisfaction of the canal company. And if and whenever the height of the said bridge or works shall by subsidence of the ground be lowered below the existing height so as to reduce the headway above the top water level of the said canal the Corporation shall at their own expense raise or otherwise restore the said bridge to its original height :

(3) The Corporation shall acquire an easement only in any lands belonging to the canal company required by the Corporation for carrying out the widening of the bridge carrying Colne Road over the said canal by this Act authorised and the amount to be paid by the Corporation to the canal company for such easement shall in case of disagreement between them be settled by arbitration in manner provided by the Lands Clauses Acts :

(4) The Corporation shall acquire an easement only in lands belonging to the canal company required by the Corporation for carrying out the widening of the bridge carrying Westgate over the said canal by this Act authorised except as to the land required for the two piers or abutments which the Corporation shall be entitled to purchase and acquire and the amount to be paid by the Corporation to the canal company for such land and easement shall in case of disagreement between them be settled by arbitration in manner provided by the Lands Clauses Acts :

(5) The Corporation shall pay to the canal company by way of acknowledgment for the right to attach to the arch of the aqueduct carrying the said canal over Yorkshire Street such brackets insulators and other apparatus as may be necessary for the effectual working of Tramway No. 8 by

this Act authorised such a sum per annum as shall in case of difference between them be settled by arbitration in manner provided by the Lands Clauses Acts :

- (6) The Corporation shall at all times at their own expense maintain and keep in good and substantial repair all works executed by them and affecting any bridge over the said canal towing-path works or lands of the canal company or the approaches to such bridge :
- (7) The Corporation shall make good all damage that may be occasioned to the works or property of the canal company by the construction maintenance renewal or want of repair of any of the said works but—
 - (A) In every case of pressing necessity ; and
 - (B) In every other case if for seven days after notice in writing thereof given to the Corporation by the canal company the Corporation neglect to proceed with due diligence to make good such damage
 the canal company may if they think fit make good the damage and the amount expended by them in so doing shall be repaid to them by the Corporation :
- (8) All the said works shall be constructed and maintained so that the traffic upon the said canal shall not be in anywise impeded or interfered with without the consent of the canal company and under the superintendence and to the reasonable satisfaction of the engineer of the canal company and in all things at the expense of the Corporation :
- (9) The Corporation shall also indemnify the canal company for any damage or compensation recovered against them by reason of the interruption of the traffic upon the said canal (if any) :
- (10) If and whenever by any act or omission of the Corporation any part of the said canal or towing path shall be obstructed or rendered dangerous to boats barges or other vessels navigating or using the said canal the Corporation shall pay to the canal company as or by way of ascertained damages the sum of two hundred pounds for every day during which the obstruction or danger shall continue and so in proportion for any less time than a day :
- (11) Provided that nothing in this Act contained shall prevent the canal company or any owner of boats or barges from recovering from the Corporation (in addition to the ascertained damages herein-before mentioned) any special damage that may be sustained by the canal company or such owner in consequence of the stoppage or hindrance of the traffic

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upon the said canal or towing path or in consequence of the works to be executed by the Corporation or by the canal company for the Corporation under the provisions herein-before contained or by reason of any water oozing or escaping from the said canal or by reason of any subsidence caused by any work done by the Corporation or on account of any other act or omission of the Corporation :

- (12) If the canal company shall at any time hereafter be desirous of rebuilding improving or otherwise altering the said bridge carrying Westgate over the said canal for the purpose of enabling them to improve their navigation they shall be at liberty so to do and the works in connexion therewith shall be carried out at the expense of the canal company and in accordance with plans sections and specifications to be submitted to and approved by the Corporation previous to the commencement of the said works and under the superintendence and to the reasonable satisfaction of their engineer for the time being And the canal company shall during the execution of the said works provide such temporary arrangements as may be reasonably necessary for the accommodation of the tramways vehicular traffic and foot passengers and for supporting the sewers gas water and electrical mains and other works of the Corporation which may be affected by the said works of the canal company and shall on the reconstruction improvement or alteration of the said bridge make good the roadway and footpaths thereover and reinstate the said tramways sewers and mains and other works of the Corporation as aforesaid to the reasonable satisfaction of the said engineer of the Corporation and make compensation for any damages occasioned to the undertakings works and property of the Corporation by the execution of the said works of the canal company And from and after such reconstruction improvement or alteration the canal company shall maintain the structure of the bridge and the Corporation shall maintain the roadway and footpaths thereover and the approaches thereto Provided that notwithstanding the obligation of the canal company to maintain the structure of the bridge after its reconstruction improvement or alteration as aforesaid the Corporation shall be at liberty to place upon or to suspend from the bridge either within the street or outside the bridge any gas water electrical or other mains and shall at all times at their own expense maintain and keep the same in good and substantial repair but as regards works outside the bridge the same shall be executed only in accordance

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with plans sections and specifications to be submitted to and approved by the canal company previous to the commencement thereof and under the superintendence and to the reasonable satisfaction of their engineer for the time being and on payment of compensation for any easements required and for any damages occasioned to the canal company by or in consequence of the execution maintenance or want of repair of the said works. Provided also that if any difference shall arise between the canal company and the Corporation as to the said plans sections and specifications or the mode of carrying out the said works or the temporary arrangements for the accommodation of the road traffic and works of the Corporation as aforesaid or as to the question and amount of damages suffered or compensation claimed by the Corporation or in consequence of the said works of the canal company or by the canal company by or in consequence of the said works of the Corporation the same shall be determined by arbitration in manner herein-after provided:

(13) If any difference not herein otherwise provided for shall arise between the Corporation and the canal company touching anything done or omitted to be done by the Corporation or the reasonableness of any requirements or works or any charges or in any manner in connexion with anything by this Act authorised affecting any bridges over the said canal or other property of the canal company the matter in difference unless otherwise agreed shall be determined by an arbitrator to be appointed in case the parties do not agree by the Board of Trade:

(14) If by reason of any neglect or default of the canal company any injury or damage shall at any time be caused to any bridge which has been rebuilt or is repairable by the Corporation it shall be lawful for the Corporation at the expense in all things of the canal company to make good such injury or damage:

(15) Nothing in this section contained shall affect the option reserved to the Canal Company under the provisions of the Leeds and Liverpool Canal Act 1891 or any omission on their part under the said provisions to purchase and make compensation for minerals.

63. The provisions of sections 59 (Power to retain sell &c. As to surplus lands) and 60 (Proceeds of sale &c. of surplus lands) of the Act of 1898 shall apply to any lands or any interest in lands acquired or appropriated by the Corporation under or for the purposes of this Act:

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Provided that the Corporation shall not apply capital moneys received by them from the proceeds of the sale or disposal of any surplus lands under the powers conferred by this Act to capital purposes for which such lands were originally acquired or appropriated unless the Corporation have unexhausted borrowing powers which may be reduced to the extent of the money so to be applied and which are sufficient to cover the amount of money so applied and in the event of any such application being made the borrowing powers of the Corporation shall be reduced to the extent of the amounts so applied.

Restrictions
on displacing
persons of
labouring
class.

64.—(1) The Corporation shall not under the powers by this Act granted purchase or acquire in any borough or other urban district and elsewhere than in any borough or urban district in any parish ten or more houses which on the fifteenth day of December last were or have been since that day or shall hereafter be occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers unless and until—

(a) They shall have obtained the approval of the Local Government Board to a scheme for providing new dwellings for such number of persons as were residing in such houses on the fifteenth day of December last or for such number of persons as the Local Government Board shall after inquiry deem necessary having regard to the number of persons on or after that date residing in such houses and working within one mile therefrom and to the amount of vacant suitable accommodation in the immediate neighbourhood of such houses or to the place of employment of such persons and to all the circumstances of the case ; and

(b) They shall have given security to the satisfaction of the Local Government Board for the carrying out of the scheme.

(2) The approval of the Local Government Board to any scheme under this section may be given either absolutely or conditionally and after the Local Government Board have approved of any such scheme they may from time to time approve either absolutely or conditionally of any modifications in the scheme.

(3) Every scheme under this section shall contain provisions prescribing the time within which it shall be carried out and shall require the new dwellings proposed to be provided under the scheme to be completed fit for occupation before the persons residing in the houses in respect of which the scheme is made are displaced :

Provided that the Local Government Board may dispense with the last-mentioned requirement subject to such conditions (if any) as they may see fit.

(4) Any provisions of any scheme under this section or any conditions subject to which the Local Government Board may have approved of any scheme or of any modifications of any scheme or subject to which they may have dispensed with the above-mentioned requirement shall be enforceable by a writ of Mandamus to be obtained by the Local Government Board out of the High Court. A.D. 1900.

(5) If the Corporation acquire or appropriate any house or houses under the powers by this Act granted in contravention of the foregoing provisions or displace or cause to be displaced the persons residing in any house or houses in contravention of the requirements of the scheme they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom. Provided that the Court may if it think fit reduce such penalty.

(6) For the purpose of carrying out any scheme under this section the Corporation may appropriate any lands for the time being belonging to them or which they have power to acquire :

Provided that nothing in this section shall relieve the Corporation from the necessity of obtaining the approval of the Local Government Board for such appropriation or use of their corporate land as would require such approval under the Municipal Corporations Act 1882 (as amended by section 72 of the Local Government Act 1888) or any other general Act.

(7) Subject to the provisions of this section the Corporation and the Local Government Board and their inspectors shall have and may exercise for any purpose in connexion with any scheme under this section all or any of the powers vested in them under the Public Health Act 1875 in the same manner in every respect as if the preparation and carrying into effect of such scheme were one of the general purposes of that Act :

Provided that all lands on which any buildings have been erected or provided by the Corporation in pursuance of any scheme under this section shall for a period of twenty-five years from the date of the scheme be appropriated for the purpose of dwellings and every conveyance demise or lease of such lands and buildings shall be endorsed with notice of this enactment :

Provided also that the Local Government Board may at any time dispense with all or any of the requirements of this subsection subject to such conditions (if any) as they may see fit.

(8) The Corporation shall pay to the Local Government Board a sum to be fixed by that Board in respect of the preparation and issue of any Provisional Order in pursuance of this section and

A.D. 1900. any expenses incurred by that Board in relation to any inquiries under this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

(9) For the purposes of this section the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them and the expression "house" means any tenement separately occupied by any person or persons.

Owners may be required to sell parts only of certain properties.

65. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Corporation of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Corporation and that such portions or some other greater or less portions thereof can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect :—

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the schedule to this Act and whereof a portion only is required for the purposes of the Corporation or each or any of them are herein-after included in the term "the owner" and the said properties are herein-after referred to as "the scheduled properties" :
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Corporation that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Corporation such portion only without the Corporation being obliged or compellable to purchase the whole the Corporation paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :
- (3) If within such twenty-one days the owner shall by notice in writing to the Corporation allege that such portion cannot be so severed the jury arbitrator or other authority to whom the question of disputed compensation shall be submitted

(herein-after referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other greater or less portions thereof (but not exceeding the portion over which the Corporation have compulsory powers of purchase) can be so severed:

- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Corporation the portion which the tribunal shall have determined to be so severable without the Corporation being obliged or compellable to purchase the whole the Corporation paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal:
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner:
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Corporation may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice:
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Corporation in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit,

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The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

PART V.—BORROWING POWERS AND FINANCE.

Power to
borrow.

66. The Corporation may from time to time (in addition to any moneys which they are now authorised to borrow) borrow at interest for the purposes of this Act on the security of the revenues received from the several undertakings of the Corporation and upon the borough fund and general rate not exceeding the following sums each of such sums or such part thereof respectively as may from time to time be borrowed to be repaid from time to time within the periods from which the same or any part thereof shall have been borrowed set opposite to the same respectively in this section (that is to say) :—

On the security of the tramway revenue and the borough fund and the general rate—

For construction of tramways within the borough and for electric cars equipments rolling stock and other matters connected with the tramways - - - - -	One hundred and forty-seven thousand and eight pounds Thirty years.
For construction of tramways within the district of Padiham - - - - -	Nine thousand seven hundred and seventy-nine pounds Thirty years.
For the like construction within the township of Reedley Hallows - - - - -	Five thousand three hundred and eighty-eight pounds Thirty years.
For the like construction within the district of Brierfield - - - - -	Ten thousand nine hundred and thirty-five pounds Thirty years.
For the like construction within the district of Nelson - - - - -	Ten thousand three hundred and ninety pounds Thirty years.

On the security of the borough fund and general rate—

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Street improvements widening and alteration of bridges including purchase of the necessary lands - } Forty - two thousand pounds Forty years.

For the costs of this Act such sum as is necessary for the purpose - } Five years.

And in calculating the sum the Corporation may borrow under any other enactment any sums they may borrow under this Act shall not be reckoned and the powers of the Corporation as to borrowing and reborrowing shall not be restricted by any of the provisions of the Municipal Corporations Acts or of the Public Health Acts Provided that the powers to borrow the respective sums for construction of tramways within the respective districts of Padiham Brierfield and Nelson and the township of Reedley Hallows shall only be exercised by the Corporation to the extent required for the construction of such of the tramways within those districts respectively as the Corporation shall actually construct.

67. All moneys borrowed by the Corporation under the powers of this Act shall be applied only to the purposes for which the same are respectively authorised to be borrowed and to which capital is properly applicable. Application of borrowed moneys.

68. The provisions of sections 477 (Regulations as to mortgages) and 478 (Transfers of mortgages) of the Act of 1871 shall apply to all securities issued by the Corporation for moneys borrowed under this Act and the provisions of sections 480 (Power for mortgagees to obtain a receiver) as amended by Article III. of the Order of 1897 and 481 (Accounts open to mortgagees) of the Act of 1871 shall so far as the same remain in force and unrepealed at the passing of this Act apply to all moneys borrowed by the Corporation under this Act. Extending provisions of certain sections of Act of 1871.

69. The following provisions of the Order of 1896 namely Article IV. (Power to borrow under Local Loans Act 1875) Article V. (Repayment of borrowed money) Article VI. (Increase of sinking funds) Article VII. (Power to re-borrow) and Article VIII. (Annual return to the Local Government Board) shall mutatis mutandis apply to all moneys borrowed under the powers of this Act. Extending provisions of the Burnley Order of 1896 as to sinking funds &c.

70. The accounts of receipts and expenditure of the Corporation under this Act shall be audited examined and published in like manner and with the same consequences as the other accounts of the Corporation are audited examined and published under the Municipal Corporations Act 1882. Audit of accounts.

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Copy of Act
to be regis-
tered.

71. The Corporation shall forward to the Registrar of Joint Stock Companies a printed copy of this Act and it shall be recorded by him and if such copy is not forwarded within three months from the passing of this Act the Corporation shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the copy is omitted to be forwarded and every penalty shall be recovered summarily.

Inquiries by
Local
Government
Board.

72.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purpose of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

(2) The Corporation shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

Costs of Act.

73. The costs charges and expenses preliminary to and of and incidental to the preparing and applying for and the obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the borough fund or general rate or out of moneys borrowed under the powers of this Act.

SCHEDULE referred to in the foregoing Act. A.D. 1900.

Describing PROPERTIES whereof portions only are to be taken.

No. on deposited Plans.	Parish or Township.	Description of Property.
3	Burnley - -	Farm farm buildings yards piauntations and lands
4 5 6 7 8 9 10 11 12 13 14 15 16 17 18 19 20 21 22 23 24 25 26 27 28 29 30 31 32 33 34 35 36 37 38 39 40 and 41	Ditto - -	Forecourt in each case
43	Ditto - -	Approach road
44	Ditto - -	Vacant land
45	Ditto - -	Covered store shed
47	Ditto - -	Steps leading to yard
48	Ditto - -	Steps leading to cellar
62	Ditto - -	Meadow
64	Ditto - -	Vacant land
65	Ditto - -	Plantation
66	Ditto - -	Private road
69 70 71 72 73 74 75 76 77 78 79 80 81 82 83 85 86 87 88 89 90 91 92 93 94 95 96 97 98 99 100 101 102 103 104 105 106 107 108 109 110 111 112 113 114 115 116 117 118 119 120 121 122 123 and 124	Ditto - -	Forecourt in each case
125	Ditto - -	Part of yard
138	Ditto - -	Plantation
139	Ditto - -	Plantation
142	Ditto - -	Plantation
143	Ditto - -	Private road
144	Ditto - -	Plantation
146	Ditto - -	Plantation and private road
147	Ditto - -	Ditto
148	Ditto - -	Ditto
152	Ditto - -	Greenhouse gardens and foot- paths.

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